IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-101
CP (CAA) No. 60/230/232/ND/2022

IN THE MATTER OF:
Digi Content Ltd. & Ors With HT Media Ltd. **....Applicant**

SECTION
U/s 230-232 **Order delivered on 27.05.2022**

CORAM:
SHRI ABNI RANJAN KUMAR SINHA
HON'BLE MEMBER (JUDICIAL)

SHRI HEMANT KUMAR SARANGI,
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant : Ms. Srishti Kapoor
For the IT Dept. : Ms. Vibhooti Malhotra, Mr. Shailendera Singh & Mr. Ekansh Dubey

ORDER

Heard the Ld. Counsel appearing for the Petitioners and perused the averments made in the application.

The prayers in this Petition by way of Second Motion are for fixing a date of hearing as well as other consequential directions in terms of the provisions of the Section 230 to 232 of Companies Act, 2013 read with Rule 16 of the Companies (Compromise, Arrangements and Amalgamation) Rules, 2016. It is now hereby ordered as follows:

(i) **The Petition stands Admitted.**

(ii) **The date of hearing** of the Petition filed by the Applicant Companies for approval of the Scheme **is fixed for 29.07.2022.**

(iii) **Notice of the hearing shall be published in the newspapers** namely, "Business Standard" in English and "Business Standard" in Hindi/ vernacular language, circulated within the area where the registered office is situated or respondent resides or carrying on their business in not less than 40 days before the aforesaid date fixed for hearing.

5. In addition to the publication of the above Public Notice, the Applicant Companies shall individually serve the notices of this Petition to the following Authorities, namely:

(a) Central Government through Regional Director (Northern region), Ministry of Corporate Affairs,

(b) Registrar of Companies, NCT of Delhi & Haryana, Ministry of Corporate Affairs,

(c) Official Liquidator, Delhi,

(d) The Jurisdictional Income Tax Authorities,

(e) Registrar of Chit Fund, New Delhi

(f) Such other Sectoral Regulatory Authorities, which govern working of the Companies involved in the Scheme;

at least 40 days before the date fixed for hearing of this Petition.

6. That the Applicant Companies shall, at least 7 days before the date of hearing of the Petition, file an Affidavit of Service in relation to the Newspaper publication effected as well as service of Notices on the Authorities as specified above including the Sectoral Regulators, if any.

7. Objections, if any, by the Authorities to whom Notices are given on or before the date of hearing fixed herein may be filed to the "SCHEME" contemplated by the Applicant Companies, failing which it will be considered by this Tribunal that there is no objection to approval of the "SCHEME" on the part of the Authorities, subject to other conditions as may be applicable under the Companies Act, 2013 and relevant rules framed there under being satisfied.

List the matter on **29.07.2022.**

(HEMANT KUMAR SARANGI)
MEMBER (T)

(ABNI RANJAN KUMAR SINHA)
MEMBER (J)

Md Saddam